

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Grace Perry	Team: Team # 6	CCRB Case #: 201214394	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/14/2012 10:10 PM	Location of Incident: § 87(2)(b)	Precinct: 73	18 Mo. SOL 5/14/2014	EO SOL 5/14/2014	
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/19/2012 3:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Jackson	10260	938704	PBBN AC
2. POM David Afanador	31730	936100	PBBN AC
3. POF Salwa Jwayyed	26007	941981	PBBN AC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edgar Gonzalez	00557	917698	81 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jason Jackson	Abuse: PO Jason Jackson stopped § 87(2)(b)	§ 87(2)(b)
B.POF Salwa Jwayyed	Abuse: PO Salwa Jwayyed stopped § 87(2)(b)	§ 87(2)(b)
C.POM David Afanador	Abuse: PO David Afanador stopped § 87(2)(b)	§ 87(2)(b)
D.POM David Afanador	Abuse: PO David Afanador searched § 87(2)(b)	§ 87(2)(b)
E.POM David Afanador	Abuse: PO David Afanador frisked § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 14, 2012, § 87(2)(b) filed this complaint with IAB (encl. 7A). On November 19, 2012, the CCRB received this complaint via IAB log #12-59631 (encl. 8A-B).

On November 14, 2012, § 87(2)(b) interacted with PO Jason Jackson, PO Salwa Jwayyed and PO David Afanador of Brooklyn North Anti-Crime. The following allegations resulted from their interaction:

- **Allegation A—Abuse of Authority: PO Jason Jackson stopped** § 87(2)(b)
- **Allegation B—Abuse of Authority: PO Salwa Jwayyed stopped** § 87(2)(b)
- **Allegation C—Abuse of Authority: PO David Afanador stopped** § 87(2)(b)
- **Allegation D—Abuse of Authority: PO David Afanador searched** § 87(2)(b)
- **Allegation E—Abuse of Authority: PO David Afanador frisked** § 87(2)(b)
- § 87(2)(g)
- § 87(2)(g), § 87(4-b)

This case was originally assigned to Inv. Kimani Richardson. It was reassigned to the undersigned on February 6, 2013, following Inv. Richardson's departure from the agency. § 87(2)(b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b)

IAB intake CD Summary (encl. 9A)

At approximately 10:10 p.m., § 87(2)(b) exited his vehicle on § 87(2)(b) and walked around the corner to his home at § 87(2)(b). He observed officers driving past him. § 87(2)(b) walked up to his door, put his key in the door, and then felt PO1

(Hispanic male, 5'9", plainclothes) put his hand in § 87(2)(b)'s jacket pocket. He did not take anything out. § 87(2)(b) pushed PO1 away. PO1 told § 87(2)(b) "I want to talk to you." PO1 also tried to pat § 87(2)(b) down. PO2 (White female, 5'6", plainclothes) approached and continued to tell § 87(2)(b) they wanted to talk to him. Then PO1 and PO2 pinned § 87(2)(b) on his stoop behind the door, on the railing. § 87(2)(b)'s mother came outside and explained to the officers that her son had PTSD. § 87(2)(b) repeatedly told the officers not to touch him. PO3 (Black male, 6'2") approached at some point, and tried to pull § 87(2)(b) back up his steps. The officers told § 87(2)(b) that they would arrest him for disorderly conduct. § 87(2)(b) told the officers to go fuck themselves because he was not being disorderly. § 87(2)(b) spoke with PO3 and told him he did not want to speak with the officers. PO3 told § 87(2)(b) he could go back inside, and he did. § 87(2)(b) stated the officers told his mother that they got a call in the area and wanted to check in with him. One officer told § 87(2)(b) his badge number, which he recalled as #10260, but he was not sure if that was the correct number.

CCRB Testimony

On November 14, 2012, § 87(2)(b) filed this complaint with IAB (encl. 9A). On January 14, 2013, § 87(2)(b) provided a telephone statement to the CCRB (encl. 10A-B). On February 14, 2013, § 87(2)(b) provided a sworn statement to the CCRB (encl. 10C-I).

At approximately 10:10 p.m. on November 14, 2012, § 87(2)(b) parked his car on Thomas S. Boylan Street, just south of Atlantic Avenue, and walked around the corner to his home at § 87(2)(b). He was wearing jeans, a t-shirt and a thin black jacket. His keys were in his right jacket pocket, his cell phone in his front left pants pocket and he was holding a Snapple bottle. § 87(2)(b)'s mother called him and he stopped for about twenty seconds to speak with her. He kept his earbuds in and continued to walk toward his building. As he walked, he noticed a gray Chevrolet Impala with tinted windows double-parked immediately outside § 87(2)(b)'s apartment building. § 87(2)(b) observed three officers in the vehicle, identified as PO David Afanador (in the passenger's seat), PO Salwa Jwayyed (in the back seat) and PO Jason Jackson (in the driver's seat), all from Patrol Borough Brooklyn North Anti-Crime. § 87(2)(b) heard PO Afanador mumble something to him, but § 87(2)(b) did not hear what was said.

§ 87(2)(b) walked up his stoop and put his key in the door, when he felt hands reaching into his left and right jacket pockets. § 87(2)(b) turned and saw PO Afanador standing one step down, reaching into § 87(2)(b)'s pockets. § 87(2)(b) immediately pushed PO Afanador's chest with both hands and asked PO Afanador what he was doing. PO Afanador said he just wanted to talk to § 87(2)(b). PO Jwayyed was standing on the sidewalk. § 87(2)(b) assumed they were officers based on the interaction but was not presented with a badge at this time. PO Jwayyed walked to the top of the stoop (where § 87(2)(b) and PO Afanador stood) and grabbed § 87(2)(b)'s right shoulder. § 87(2)(b) asked the officers why they were touching him, and PO Jwayyed told him they were not searching them. PO Afanador patted down § 87(2)(b)'s chest and torso with both hands for approximately ten seconds. PO Afanador asked § 87(2)(b) if he had any weapons. At no point did any officer ask him for his identification. § 87(2)(b) described his own behavior throughout the incident as "very aggressive," "very physical" and "uncooperative." He told the officers, "Don't fucking touch me," "Get the fuck off of me," "Get the fuck out of my face" and "Let me fucking go" throughout the incident.

PO Afanador pinned § 87(2)(b) against the metal railing along the stoop. § 87(2)(b) argued with PO Afanador and PO Jwayyed about search and seizure. § 87(2)(b) did not specifically ask PO Jwayyed or PO Afanador for their name or shield number (which contradicts

his telephone statement). PO Jackson walked up the stoop and asked § 87(2)(b) to calm down. § 87(2)(b) did not want to talk to PO Jackson. PO Jwayyed told § 87(2)(b) they would arrest him for disorderly conduct if he did not calm down. § 87(2)(b)'s mother, § 87(2)(b) came to the door and tried to exit; PO Jwayyed pushed the door closed to prevent § 87(2)(b) from exiting. The door is made of glass, so § 87(2)(b) stood there to watch. Two of § 87(2)(b)'s neighbors, who § 87(2)(b) did not know, exited their apartments to see what was happening. § 87(2)(b) tried to walk down the stoop steps, but PO Jackson and PO Afanador blocked his path. § 87(2)(b) tried to squeeze through them. PO Jwayyed tangled her leg in § 87(2)(b)'s legs. All four were still at the top of the stoop at this point. § 87(2)(b) forced himself through PO Jackson and PO Afanador and walked down to the sidewalk, and the officers followed him.

PO Afanador and PO Jackson pushed § 87(2)(b) against the wall of his apartment building, to the left side of the stoop. PO Jackson spoke privately with § 87(2)(b). At this point, § 87(2)(b) exited the building and spoke with PO Jwayyed and PO Afanador, though § 87(2)(b) could not hear their conversation. § 87(2)(b) calmed down and asked to see PO Jackson's badge. PO Jackson took his badge out and showed § 87(2)(b). In his IAB complaint, § 87(2)(b) said that to his best memory, PO Jackson's badge number was #10260; he did not provide this information in his CCRB interview. PO Jackson asked again if they could speak with him, and § 87(2)(b) said no. § 87(2)(b) went back into his apartment to get a pen and paper to record the officers' names and badge numbers. When he exited two minutes later, all three officers entered their vehicle and drove away. § 87(2)(b) estimated the entire incident took about twenty minutes. § 87(2)(b) went to the 73rd Precinct stationhouse to file a complaint, and he was told they had no plainclothes female officers. He then went to the 75th Precinct, the 77th Precinct, and another command § 87(2)(b) could not identify to try to get identifying information for these officers.

§ 87(2)(b) described PO Afanador as a Hispanic male in his mid-30s, 5'9", stocky, with short, balding black hair with shades of gray, with no facial hair, glasses or tattoos. He described PO Jwayyed as a white female in her late 20s, 5'5"-5'6", slim with brown hair, no glasses or tattoos. He described PO Jackson as a black male in his early 40s, 6'2", 210lbs, with black hair.

Attempts to Contact Civilians

The investigation determined that § 87(2)(b)'s mother, § 87(2)(b) did not witness any FADO allegations and thus is not a witness.

On March 6, 2014, the undersigned scheduled § 87(2)(b) to view a photo array on March 11, 2014. § 87(2)(b) did not appear for this scheduled appointment, nor did he call ahead to cancel or reschedule. On March 28, 2014, the undersigned scheduled § 87(2)(b) to view a photo array on April 2, 2014. Again, § 87(2)(b) failed to appear for his appointment, and he did not call ahead to cancel or reschedule.

NYPD Statements:

Subject Officer: PO JASON JACKSON

- § 87(2)(b)
- *PO Jackson is now assigned to ESU, but was assigned to Brooklyn North Anti-Crime at the time of this incident. He worked from 5:30 p.m. until 2:05 a.m. He was in plainclothes and unmarked RMP #§ 87(2)(b) (which he could not describe), and worked with PO Salwa Jwayyed and PO David Afanador.*

Memo Book (encl. 11A-B)

PO Jackson has no memo book entries regarding this incident. He did note that he conducted a vehicle stop at the corner of Marcy Avenue and Jefferson Avenue at 10:15 p.m., the disposition of which was a 10-91, non-crime corrected. He had no entries prior to that.

CCRB Testimony

On April 9, 2014, PO Jackson provided a sworn statement to the CCRB (encl. 12A-B).

PO Jackson did not recall interacting with § 87(2)(b) at all on this date. He did not recall how the vehicle stop he noted at 10:15 p.m. occurred, or any details of that stop. PO Jackson noted that the vehicle stop took place at Marcy Avenue and Jefferson Avenue in Brooklyn. The investigator pulled up a map on GoogleMaps during the interview, which indicated that the intersection of Marcy Avenue and Jefferson Avenue is approximately two miles away from where this incident took place. PO Jackson did not recall being in the vicinity of § 87(2)(b) at all during his tour, nor did he recall stopping any individuals on the street. The investigator described the incident to PO Jackson and showed him a photograph of § 87(2)(b). PO Jackson still did not recall this incident. PO Jackson did not recall stopping, frisking, searching or using physical force against § 87(2)(b) at all on this date. PO Jackson stated his assignment, as anti-crime, was to look for guns and violent felonies.

Subject Officer: PO SALWA JWAYYED

- § 87(2)(b)
- On November 14, 2012, PO Jwayyed worked with PO Jason Jackson and PO David Afanador. They were assigned to Brooklyn North Anti-Crime and specifically were assigned to the 79th Precinct for that week. PO Jwayyed worked from 5:30 p.m. to 2:05 a.m. the following day, was in plainclothes and assigned to an unmarked RMP, though could not describe the vehicle.

Memo Book (encl. 13A-B)

PO Jwayyed had no memo book entries regarding this incident or any entries throughout her tour. She noted her assignment at 5:30 p.m. and end of tour at 2:05 a.m. the following day.

CCRB Testimony

On April 23, 2014, PO Jwayyed provided a sworn statement to the CCRB (encl. 14A-B).

PO Jwayyed had no independent recollection of this incident. The investigator showed her a photograph of § 87(2)(b) and described the incident to her; this did not refresh her memory. PO Jwayyed had no independent memory of what she did during her tour on November 14, 2012, but was assigned to the 79th Precinct. PO Jwayyed explained that in Anti-Crime, they were assigned to a different precinct each week and would work within the confines of that precinct. She did not recall being in the vicinity of § 87(2)(b) in Brooklyn at all during her tour, nor did she recall making any stops during that tour. PO Jwayyed did not recall interacting with § 87(2)(b) she did not recall frisking, searching, threatening to arrest or using any physical force against § 87(2)(b).

Subject Officer: PO DAVID AFANADOR

- § 87(2)(b)
- On November 14, 2012, PO Afanador was assigned to Brooklyn North Anti-Crime, specifically to the 79th Precinct. He worked with PO Salwa Jwayyed and PO Jason

Jackson from 5:30 p.m. to 2:05 a.m. the following day. PO Adanafor was in plainclothes and assigned to an unmarked vehicle (either an Impala or a Crown Victoria, though he did not have the number noted and could not recall the color).

Memo Book (encl. 15A-B)

PO Afanador has no memo book entries from this incident. At 5:45 p.m., he noted present for duty. At 11:11 p.m., he noted one male stopped at Herkimer Street and New York Avenue. He also completed UF-250s for three individuals throughout his tour.

CCRB Testimony

On April 25, 2014, PO Afanador provided a sworn statement to the CCRB (encl. 16A-B).

PO Afanador had no independent recollection of this incident. The investigator described the incident to PO Afanador and showed him a photograph of § 87(2)(b) neither of which refreshed PO Afanador's memory. Their duties were to deter violent felonies (specifically shootings and robberies) in the 79th Precinct. To his knowledge, he and his partners remained in the confines of the 79th Precinct for their entire tour. PO Afanador stated they were on their own Patrol Borough roll call, not on the 79th Precinct roll call. He did not recall being in the vicinity of § 87(2)(b) or in the confines of the 73rd Precinct at any point during his tour. PO Afanador stated he was not driving their vehicle, but did not recall where he or PO Jackson or PO Jwayyed was seated in the vehicle. To PO Afanador's knowledge, he worked with PO Jwayyed and PO Jackson his entire tour. PO Afanador did not stop, frisk, search, use physical force or interact at all with an individual outside of § 87(2)(b) during his tour.

NYPD Documents

73rd Precinct Roll Call (encl. 24A-P)

81st Precinct Roll Call (encl. 25A-P)

Narcotics Borough Brooklyn North Roll Call (encl. 26A-N)

Enclosed are the tour 3 roll calls from the 73rd Precinct, the 81st Precinct and Narcotics Borough Brooklyn North, all of which were active in the vicinity of this incident location. There was no combination of plainclothes officers made up of a white female, a black male and a Hispanic male from any of these commands during the time of incident.

73rd Precinct UF-250 Log (encl. 22A)

This document indicates that no UF-250 was prepared by PO Jackson, PO Jwayyed or PO Afanador for stopping any individual in the 73rd Precinct on November 14, 2012.

MOS Photograph of PO David Afanador (encl. 21A)

PO Afanador, § 87(2)(b)

His shield number is #31730.

MOS Photograph of PO Salwa Jwayyed (encl. 20A)

§ 87(2)(b)

Her shield number is #26007.

MOS Photograph of PO Jason Jackson (encl. 19A)

§ 87(2)(b)

His shield number is #10260.

FLEET Services Request (encl. 32N)

RMP #§ 87(2)(b) is a silver Ford Crown Victoria., license plate #§ 87(2)(b)

Status of Civil Proceedings (encl. 29A)

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 30, 2014 with regard to the incident.

Civilians' Criminal History (encl. 30A-F)

- As of April 22, 2014, Office of Court Administration records reveal no criminal convictions for § 87(2)(b)

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5A)

Subject Officers' CCRB History

- PO Jason Jackson has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO David Afanador has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 4A-B).
- PO Salwa Jwayyed has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 3A).

Conclusion

Allegations Not Pleaded

- § 87(2)(b) alleged that PO Jwayyed and PO Afanador pushed him against the railing of his stoop, and later, PO Afanador and PO Jackson pushed § 87(2)(b) against the wall of the building. The investigation determined that these shoves were both minor forced used incident to detaining a physically and verbally uncooperative § 87(2)(b). As such, these allegations are not being pleaded.
- § 87(2)(b) alleged in his telephone statement that PO Afanador and PO Jwayyed refused to display their shields upon request. However, in his sworn statement, § 87(2)(b) said he never explicitly asked PO Afanador or PO Jwayyed for their identifying information. As such, this allegation is not being pleaded.
- § 87(2)(b) alleged that PO Jwayyed told § 87(2)(b) if he did not calm down they would arrest him for disorderly conduct. § 87(2)(b)'s self-described behavior indicates he was acting disorderly; he was screaming and cursing, which attracted § 87(2)(b)'s and their neighbors' attention. As such, PO Jwayyed's alleged statement was not a threat, but a statement of fact, and is therefore not being pleaded.

Identification of Subject Officers

§ 87(2)(b) described his subject officers as a black male, a Hispanic male, and a white female, all in plainclothes, assigned to a gray, unmarked vehicle. In his initial IAB complaint (encl. 9A), which he filed approximately one hour after the incident, § 87(2)(b) provided shield #10260 for one of the officers on scene. § 87(2)(b) was not certain this was the correct number, and he did not provide this number in his CCRB testimony. This shield number belongs

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date